

LEGISLATURE OF THE STATE OF IDAHO
Sixty-eighth Legislature Second Regular Session - 2026

IN THE HOUSE OF REPRESENTATIVES

HOUSE BILL NO. 635

BY EDUCATION COMMITTEE

AN ACT

RELATING TO EDUCATION; AMENDING SECTION 33-1209, IDAHO CODE, TO REVISE PROVISIONS REGARDING INVESTIGATIONS BY THE PROFESSIONAL STANDARDS COMMISSION; AND DECLARING AN EMERGENCY AND PROVIDING AN EFFECTIVE DATE.

Be It Enacted by the Legislature of the State of Idaho:

SECTION 1. That Section 33-1209, Idaho Code, be, and the same is hereby amended to read as follows:

33-1209. PROCEEDINGS TO REVOKE, SUSPEND, DENY OR PLACE REASONABLE CONDITIONS ON A CERTIFICATE -- LETTERS OF REPRIMAND -- COMPLAINT -- SUBPOENA POWER -- HEARING. (1) The professional standards commission may conduct investigations on any signed allegation of unethical conduct of any teacher brought by:

(a) An individual with a substantial interest in the matter, except a student in an Idaho public school; or

(b) A local board of trustees.

The allegation shall state the specific ground or grounds for the allegation of unethical conduct that could lead to a possible revocation, suspension, placing reasonable conditions on the certificate, or issuance of a letter of reprimand. Upon receipt of a written and signed allegation of unethical conduct, the chief certification officer, in conjunction with the attorney general and the professional standards commission investigator, shall conduct a review of the allegation using established guidelines to determine whether to remand the issue to the school district to be resolved locally or to open an investigation and forward the case to the professional standards commission. Within fourteen (14) days of the decision to forward the case, the chief certification officer shall notify the complainant and the teacher, in writing, that an investigation will be conducted and the teacher shall be afforded an opportunity to respond to the allegation verbally and in writing prior to the issuance of the complaint. The executive committee of the professional standards commission shall review the circumstances of the forwarded case at one (1) of the two (2) next regularly scheduled meetings, and determine whether probable cause exists to warrant the filing of a complaint and the requesting of a hearing.

(2) Proceedings to revoke or suspend any certificate issued under section 33-1201, Idaho Code, or to issue a letter of reprimand or place reasonable conditions on the certificate shall be commenced by a written complaint against the holder thereof. Such complaint shall be made by the chief certification officer stating the ground or grounds for issuing a letter of reprimand, placing reasonable conditions on the certificate, or for revocation or suspension and proposing that a letter of reprimand be issued, reasonable conditions be placed on the certificate, or the certificate be revoked or suspended. A copy of the complaint shall be served upon the certificate

1 holder, either by personal service or by certified mail, within thirty (30)
2 days of determination by the executive committee or such other time agreed
3 to by the teacher and the chief certification officer. Any complaint that
4 contains information relating to behavior that may be criminal shall be re-
5 ported to the appropriate law enforcement authorities.

6 (3) Not more than thirty (30) days after the date of service of any
7 complaint, the person complained against may request, in writing, a hearing
8 upon the complaint. Any such request shall be made and addressed to the state
9 superintendent of public instruction; and if no request for hearing is made,
10 the grounds for suspension, revocation, placing reasonable conditions on
11 the certificate, or issuing a letter of reprimand stated in the complaint
12 shall be deemed admitted. Upon a request for hearing, the chief certifi-
13 cation officer shall give notice, in writing, to the person requesting the
14 hearing, which notice shall state the time and place of the hearing and which
15 shall occur not more than ninety (90) days from the request for hearing or
16 such other time agreed to by the teacher and the chief certification officer.
17 The time of such hearing shall not be less than five (5) days from the date of
18 notice thereof. Any such hearing shall be informal and shall conform with
19 chapter 52, title 67, Idaho Code. The hearing will be held within the school
20 district in which any teacher complained of shall teach, or at such other
21 place deemed most convenient for all parties.

22 (4) Any such hearing shall be conducted by three (3) or more panel mem-
23 bers appointed by the chairman of the professional standards commission, a
24 majority of whom shall hold a position of employment the same as the person
25 complained against. One (1) of the panel members shall serve as the panel
26 chair. The panel chair shall be selected by the chairman of the professional
27 standards commission from a list of former members of the professional stan-
28 dards commission who shall be instructed in conducting administrative hear-
29 ings. No commission member who participated in the probable cause determi-
30 nation process in a given case shall serve on the hearing panel. All hear-
31 ings shall be held with the object of ascertaining the truth. Any person com-
32 plained against may appear in person and may be represented by legal counsel,
33 and may produce, examine and cross-examine witnesses, and, if he chooses to
34 do so, may submit for the consideration of the hearing panel a statement, in
35 writing, in lieu of oral testimony, but any such statement shall be under
36 oath and the affiant shall be subject to cross-examination.

37 (5) The state superintendent of public instruction, as authorized by
38 the state board of education, has the power to issue subpoenas and compel
39 the attendance of witnesses and compel the production of pertinent papers,
40 books, documents, records, accounts and testimony. The state board or its
41 authorized representative may, if a witness refuses to attend or testify or
42 to produce any papers required by such subpoena, report to the district court
43 in and for the county in which the proceeding is pending, by petition, set-
44 ting forth that a due notice has been given of the time and place of atten-
45 dance of the witnesses, or the production of the papers, that the witness has
46 been properly summoned, and that the witness has failed and refused to at-
47 tend or produce the papers required by this subpoena before the board, or its
48 representative, or has refused to answer questions propounded to him in the
49 course of the proceedings, and ask for an order of the court compelling the
50 witness to attend and testify and produce the papers before the board. The

1 court, upon the petition of the board, shall enter an order directing the
2 witness to appear before the court at a time and place to be fixed by the court
3 in the order, the time to be not more than ten (10) days from the date of the
4 order, and then and there shall show cause why he has not attended and testi-
5 fied or produced the papers before the board or its representative. A copy of
6 the order shall be served upon the witness. If it shall appear to the court
7 that the subpoena was regularly issued by the board and regularly served, the
8 court shall thereupon order that the witness appear before the board at the
9 time and place fixed in the order and testify or produce the required papers.
10 Upon failure to obey the order, the witness shall be dealt with for contempt
11 of court. The subpoenas shall be served and witness fees and mileage paid as
12 allowed in civil cases in the district courts of this state.

13 (6) Within twenty-one (21) days of the conclusion of any hearing
14 dealing with the revocation, suspension, denial of a certificate, placing
15 reasonable conditions on the certificate, or issuing a letter of reprimand,
16 the hearing panel shall submit to the chief certification officer, to the
17 person complained against and to the chief administrative officer of the
18 public school employing the certificate holder, if any, a concise statement
19 of the proceedings, a summary of the testimony, and any documentary evidence
20 offered, together with the findings of fact and a decision. The hearing
21 panel may determine to suspend or revoke the certificate, or the panel may
22 order that reasonable conditions be placed on the certificate or a letter of
23 reprimand be sent to the certificate holder, or if there are not sufficient
24 grounds, the allegation against the certificate holder is dismissed and is
25 so recorded.

26 (7) Within three (3) days of issuance, the hearing panel's decision
27 shall be made a permanent part of the record of the certificate holder.
28 Should the final decision be to place reasonable conditions upon the cer-
29 tificate holder or a suspension or revocation of the teaching certificate,
30 the professional standards commission must notify the employing public
31 school of the hearing panel's decision and to provide notice that such may
32 negatively impact upon the employment status of the certificated employee.

33 (8) The final decision of the hearing panel shall be subject to judicial
34 review in accordance with the provisions of chapter 52, title 67, Idaho Code,
35 in the district court of the county in which the holder of a revoked certifi-
36 cate has been last employed as a teacher.

37 (9) Whenever any certificate has been revoked, suspended or has had
38 reasonable conditions placed upon it, or an application has been denied, the
39 professional standards commission may, upon a clear showing that the cause
40 constituting grounds for the listed actions no longer exists, issue a valid
41 certificate. Provided however, that no certificate shall be issued to any
42 person who has been convicted of any crime listed in subsection (2) of sec-
43 tion 33-1208, Idaho Code.

44 (10) For any person certified in another state and applying for certifi-
45 cation in Idaho, and for any person previously certified in this state who is
46 applying for certification in the event their certification has lapsed or is
47 seeking renewal of a current certification, the chief certification officer
48 shall deny an application for a new certificate or for a renewal of a cer-
49 tificate, regardless of the jurisdiction where such certificate was issued,
50 if there are any unsatisfied conditions on such current or previously is-

1 sued certificate or if there is any form of pending investigation by a state
2 agency concerning the applicant's teaching license or certificate. Pro-
3 vided however, the chief certification officer shall not automatically deny
4 the application if such person authorized in writing that the chief certi-
5 fication officer and the professional standards commission shall have full
6 access to the investigative files concerning the conditions on, or investi-
7 gation concerning, such certificate in Idaho or any other state or province.
8 Upon review of the information authorized for release by the applicant, the
9 chief certification officer shall either grant or deny such application or,
10 upon denial and upon written request made by the applicant within thirty
11 (30) days of such denial, shall afford the applicant with the procedures set
12 forth in subsections (3) through (9) of this section. If the applicant does
13 not execute the written authorization discussed herein, reapplication may
14 be made once all investigations have been completed and all conditions have
15 been satisfied, resulting in a clear certificate from the issuing state or
16 province.

17 (11) For the purposes of this section, the term "teacher" shall include
18 any individual required to hold a certificate pursuant to section 33-1201,
19 Idaho Code.

20 SECTION 2. An emergency existing therefor, which emergency is hereby
21 declared to exist, this act shall be in full force and effect on and after
22 July 1, 2026.